

25STCV20158 25STCV20158

County: los-angeles

Division: Civil Law and Motion

Department: 529

Hearing date: 2026-09-09

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C529%2C09%2F09%2F2026

Source SHA-256: abd1a3ac29dc450c1daa2479a0e04623643c402a89465dd9f315a7e13973e541

Case Number: 25STCV20158 Hearing Date: September 9, 2026 Dept: 529

ARIN TOROSSIAN vs GENERAL MOTORS, LLC.

motion to strike portions of first amended complaint for non-compliance with ccp §871.24

Date of Hearing: September 9, 2026 Trial Date: June 2, 2027

Department: 529 Case No.: 25STCV20158

Moving Party: Defendant General Motors LLC

Responding Party: Plaintiff Arin Torossian

Meet and Confer: Yes. (Perez Decl.)

BACKGROUND

On July 1, 2025, Plaintiff Arin Torossian filed a complaint with Defendant General Motors LLC for various violations of the Song-Beverly Consumer Warranty Act. On May 26, 2026, Plaintiff filed a First Amended Complaint.

[Tentative] Ruling

Defendant General Motors LLC's Motion to Strike is CONTINUED.

DISCUSSION

Defendant General Motors LLC moves this court for an order to strike designated portions of the First Amended Complaint filed by Plaintiff Arin Torossian on the grounds that the Complaint contains improperly pled requests for civil penalties in violation of Code of Civil Procedure section 871.24, recently enacted to streamline the Song-Beverly Consumer Warranty Act.

Motions to strike are used to reach defects or objections to pleadings that are not challengeable by demurrer (i.e., words, phrases, prayer for damages, etc.). (See CCP §§435, 436 & 437.) A motion to strike can be made to strike irrelevant, false or improper matter inserted in any pleading or to strike any pleading or part thereof not drawn or filed in conformity with the laws of this state, a court rule or order of the court. (CCP §436.)

“At least 30 days prior to the commencement of an action seeking civil penalties under subdivision (c) of Section 1794 of the Civil Code, the consumer shall do all of the following: (1) Notify the manufacturer of the consumer's name, the accurate Vehicle Identification Number (“VIN”) of the motor vehicle, and a brief summary of the repair history and problems with the motor vehicle. (2) Demand that the manufacturer repurchase or replace the motor vehicle.” (CCP § 871.24(a).) The failure to comply with the pre-lawsuit notification requirement precludes recovery of civil penalties for a Song-Beverly claim. (CCP §871.24(h).)

Defendant moves to strike Paragraphs 35, 36, 37, 42, 45, and Subdivisions (f) of the Prayer for civil penalties on the grounds Plaintiff unilaterally and without court-approval changed the date in the initial complaint from July 1, 2025 to June 30, 2025, which is critical to determining which law governs Plaintiff's prayer for civil penalties. Specifically, as part of recent legislative reforms enacted under Assembly Bill 1755, starting July 1, 2025, all consumers bringing suit against an automobile manufacturer under the Song Beverly Act are required to comply with the written pre-suit notice and vehicle retention requirements of Code of Civil Procedure¹ section 871.24 if they wish to seek civil penalties for any alleged breach of express warranty claims. In this matter, Plaintiff filed their initial complaint on July 1, 2025 at 1:37am in Los Angeles Superior Court. As a result, Plaintiff may not circumvent Section 871.24's compliance requirements for seeking civil penalties by unilaterally changing the filing date of the case to June 30, 2025.

In opposition, Plaintiff argues it is established law in California that a complaint is filed when it is presented for filing, not the date it is stamped by the clerk. While the file-stamp shows 1:37am on July 1, Plaintiff contends the file-stamp does not show when the complaint is considered filed for purposes of the law. (See *Rojas v. Cutsforth* (1998) 67 Cal.App.4th 774, 778, “a paper is deemed filed when it is deposited with the clerk with directions to file the paper.”) Plaintiff does not allege pre-suit notice to GM because Plaintiff presented his suit for filing on June 30, and pre-suit notice was not required.

The court continues the motion to strike. The court, on its own, takes judicial notice of the official time stamp showing July 1, 2026. The judicially noticed filing date (July 1, 2025) is a fact that contradicts the complaint's allegation of a June 30 submission. As a result, Plaintiff should request judicial notice of electronic submission records showing the actual receipt date.

Based on the foregoing, the motion to strike is CONTINUED.